



CHAPTER v

An Act to provide for the transfer to Northern Rhodesia of the registration of Rhodesian Anglo American Limited Rhokana Corporation Limited Nchanga Consolidated Copper Mines Limited Rhodesia Copper Refineries Limited and the Rhodesia Broken Hill Development Company Limited to apply to those companies the provisions of the Companies Ordinance of the said territory in place of certain provisions of the Companies Act 1948 and for other purposes.

[6th May 1953.]

WHEREAS each of the following companies that is to say Rhodesian Anglo American Limited Rhokana Corporation Limited Nchanga Consolidated Copper Mines Limited Rhodesia Copper Refineries Limited and the Rhodesia Broken Hill Development Company Limited (in this Act referred to together as "the Five Companies") is an existing company within the meaning of the Companies Act 1948 and is a company limited by shares:

And whereas Rhodesian Anglo American Limited carries on business as a mining finance company:

And whereas Rhodesian Anglo American Limited is a holding company within the meaning of section 154 of the Companies Act 1948 having as subsidiaries Rhokana Corporation Limited Nchanga Consolidated Copper Mines Limited and Rhodesia Copper Refineries Limited the two first named of which carry on mining operations in Northern Rhodesia and the last named of which also operates in Northern Rhodesia and refines copper produced at the mines of the said two first-named companies:

And whereas Rhodesian Anglo American Limited has substantial holdings in the Rhodesia Broken Hill Development Company Limited which also carries on mining operations in Northern Rhodesia:

And whereas the registered office of each of the Five Companies is situate in England:

And whereas the seat of control of the business of each of the Five Companies was formerly situate in England but such seat of control became increasingly inconvenient:

And whereas with a view to the more efficient and economical administration of the Five Companies and with the consent of the Treasury given pursuant to subsection (2) of section thirty of the Exchange Control Act 1947 the seats of control of the Five Companies were transferred to Northern Rhodesia as from the first day of January nineteen hundred and fifty-one:

And whereas having regard to the area of operations of the Five Companies and with the approval of the Government of Northern Rhodesia and with a view to the more efficient and economical working of the Five Companies it is expedient that each of the Five Companies should cease to be registered in England and become registered in Northern Rhodesia and subject to the provisions of the Companies Ordinance of that territory in place of certain provisions of the Companies Act 1948:

And whereas no procedure exists whereby the registration of a company to which the Companies Act 1948 applies can be transferred to a part of Her Majesty's dominions outside Great Britain:

And whereas procedure by way of the winding up and dissolution of each of the Five Companies and the transfer or sale of assets to new companies registered in Northern Rhodesia would involve loss of the identity of the existing companies and the disturbance of their financial structures and interfere with the continuity of their operations with considerable attendant expense and delay:

And whereas it is expedient that such provisions should be enacted as are in this Act contained:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Rhoanglo Group Act 1953. Short title.

2.—(1) In this Act unless the subject or context otherwise Interpretation. requires—

“The Company” means each of the Five Companies;

“the date of registration” means as respects each of the Five Companies the date of the delivery by that Company of a copy of this Act together with a notice of the situation of its registered office in Northern Rhodesia to the registrar in Northern Rhodesia in pursuance of section 3 (Company deemed to be formed under law of Northern Rhodesia) of this Act;

“existing” means existing immediately before the date of registration;

“the Five Companies” means Rhodesian Anglo American Limited Rhokana Corporation Limited Nchanga Consolidated Copper Mines Limited Rhodesia Copper Refineries Limited and the Rhodesia Broken Hill Development Company Limited;

“the Ordinance” means the Companies Ordinance of Northern Rhodesia (Chapter 216 of the Laws of Northern Rhodesia 1951 edition);

“the registrar in England” means the registrar or other officer performing under the Companies Act 1948 the duty of registration of companies in England;

“the registrar in Northern Rhodesia” means the Registrar of Companies appointed under the Ordinance.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

3. The Company shall within twelve months after the first Company day of January nineteen hundred and fifty-four deliver to the registrar in Northern Rhodesia (who shall retain and register the same) a printed copy of this Act together with a notice of the situation of its registered office in Northern Rhodesia and as from the date of such delivery the Company shall be deemed to be formed under the provisions of the Ordinance as a company limited by shares and shall subject to the provisions of this Act become subject to the provisions of the Ordinance. deemed to be formed under law of Northern Rhodesia.

4. On and from the date of registration the existing memorandum and articles of association of the Company as filed with the registrar in Northern Rhodesia in pursuance of section 215 of the Ordinance shall subject to the provisions of the Ordinance Memorandum and articles of association.

(including without prejudice to the generality of the foregoing the power as respects alteration) and with the amendments specified as respects the Company in the relevant Part of the schedule to this Act become and be the memorandum and articles of the Company and shall be treated as having been registered under the Ordinance on that date and the registrar in Northern Rhodesia shall issue a certificate of incorporation accordingly.

Registrar in
England to
strike off
register.

5. As soon as reasonably practicable after the registrar in Northern Rhodesia has issued to the Company a certificate of incorporation pursuant to the last preceding section of this Act the Company shall notify the registrar in England thereof by cablegram and also transmit to him by registered post a certified copy of the said certificate and the registrar in England shall strike the name of the Company from the register in England as from the date of registration and from that date the provisions of the Companies Act 1948 (with the exception in the case of an overseas company within the meaning of section 406 of that Act of those which apply to overseas companies) shall not apply to the Company.

Pending
actions not
to abate.

6. If at the date of registration any action arbitration or proceeding or any cause of action arbitration or proceeding shall be pending or existing by or against or in favour of the Company the same shall not abate or be discontinued or be in any wise prejudicially affected by reason of the passing of this Act or anything in this Act but may be continued prosecuted and enforced by against or in favour of the Company as and when it might have been continued prosecuted and enforced by against or in favour of the Company if this Act had not been passed but not further or otherwise.

Contracts etc.
to be binding.

7. All contracts agreements conveyances deeds leases and other instruments affecting the Company and in force at the date of registration shall as from that date be as binding and of as full force against or in favour of the Company and may be enforced as fully and effectually as if this Act had not been passed.

Books etc.
to remain
evidence.

8. All books registers and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the Company shall on and after the date of registration be admitted in evidence in respect of the same or the like matter for or against the Company.

Commence-
ment of
business etc.

9. For the purposes of the Ordinance the companies mentioned in the first column of the following table shall respectively be deemed to have been entitled to commence business and to

exercise its borrowing powers on the date set opposite to its name in the second column of that table:—

1	2
Name of Company	Date
Rhodesian Anglo American Limited	12th December 1928.
Rhokana Corporation Limited	23rd February 1923.
Nchanga Consolidated Copper Mines Limited ...	16th March 1937.
Rhodesia Copper Refineries Limited	6th March 1947
The Rhodesia Broken Hill Development Company Limited	9th November 1910.

10. In the application of section 25 of the Ordinance any Forgery existing share warrant to bearer or coupon or any existing personation document purporting to be a share warrant to bearer or coupon unlawfully issued by the Company shall be deemed to have been issued in engraving pursuance of the Ordinance. plates etc.

11. In the application to the Company of section 52 of the Register of Ordinance the date of registration within the meaning of this Act members shall be deemed to be the date of the registration of the Company within the meaning of that section.

12. The Company shall deliver to the registrar in England Copy of Act to a printed copy of this Act and he shall retain and register the be registered same and if such copy is not so delivered within three months in England. from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar in England by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1948 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

13. It is hereby declared that this Act extends to Northern Extent of Act, Rhodesia.

Costs of Act.

14. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid in such manner as shall be agreed between the Five Companies or as (failing such agreement) shall be determined by a single arbitrator to be appointed (failing agreement between the Five Companies as to such appointment) by the President of the Society of Parliamentary Agents on the application of any one or more of the Five Companies after notice in writing to the others or other of them and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to the arbitration.

SCHEDULE

PART I

AS RESPECTS RHODESIAN ANGLO AMERICAN LIMITED

Provision to be amended	Amendment
Memorandum of Association— Clause 2 ...	For the word “ England ” there shall be substituted the words “ Northern Rhodesia ”.
Articles of Association— Article 1 ...	For the words “ Companies (Consolidation) Act 1908 ” there shall be substituted the words “ Companies Ordinance of Northern Rhodesia ”.
Article 2 ...	There shall be inserted immediately after the words “ The Company ” and the definition thereof the words “ The Ordinance ” and the definition “ The Companies Ordinance of Northern Rhodesia ”. For the definition of “ The Statutes ” there shall be substituted the definition “ The Companies Ordinance of Northern Rhodesia and every other enactment having effect for the time being in the said territory concerning joint stock companies and affecting the Company ”. There shall be inserted immediately after the words “ These Presents ” and the definition thereof the words “ Extraordinary Resolution ” and the definition “ A resolution passed by a majority of not less than three-fourths of the members voting in person or by proxy and entitled so to vote at a meeting of which notice specifying the intention to propose the resolution as an extraordinary resolution has been duly given ”.
Article 8 ...	For the words “ Section 88 of the Companies (Consolidation) Act 1908 ” there shall be substituted the words “ Section 73 of the Ordinance ”.
Article 9 ...	The words “ by Section 89 of the Companies (Consolidation) Act 1908 or other the provisions of the Statutes ” shall be deleted.
Article 10 ...	For this article the following article shall be substituted “ The Company shall make the annual return required by Section 45 of the Ordinance in the manner therein provided ”.
Article 12 ...	For the words “ under the Common or an Official Seal of the Company ” there shall be substituted the words “ under the Common Seal of the Company or executed by the attorney of the Company duly authorised in that behalf pursuant to Section 108 of the Ordinance ”.
Article 32A	For the words “ at the office ” there shall be substituted the words “ in relation thereto ”.
Article 49 ...	There shall be inserted after the word “ may ” the words “ (subject to the provisions of Section 55 of the Ordinance) ”.

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 55 ...	For the words "Section 100 of the Companies (Consolidation) Act 1908" there shall be substituted the words "Section 89 of the Ordinance" and for the words "Section 93 of the Companies (Consolidation) Act 1908" there shall be substituted the words "Section 82 of the Ordinance".
Article 56 ...	The whole article shall be deleted.
Article 59 ...	The words from "in accordance with the provisions" to the end of the article shall be deleted and in lieu thereof there shall be inserted "by Members holding not less than one-tenth of such of the paid-up capital of the Company as at the date of the deposit of the requisition carries the right to vote at General Meetings of the Company The requisition shall state the objects of the meeting and be signed by the requisitionists and deposited at the Office or the Head Office and may consist of several documents in like form each signed by one or more requisitionists If the Directors do not within twenty-one days from the date of the deposit of the requisition proceed duly to convene a meeting the requisitionists or any of them representing more than one-half of the total voting rights of all of them may themselves convene a meeting but any meeting so convened shall not be held after the expiration of three months from the said date Any reasonable expenses incurred by the requisitionists by reason of the failure of the Directors duly to convene a meeting shall be repaid to the requisitionists by the Company and any sum so repaid shall be retained by the Company out of any sums due or to become due from the Company by way of fees or other remuneration in respect of their services to such of the Directors as were in default".
Article 64 ...	For the words "Section 68 of the Companies (Consolidation) Act 1908" there shall be substituted the words "Section 109 of the Ordinance".
Article 77 ...	The whole article shall be deleted.
Article 82 ...	The words "or as proxy for another Member" shall be deleted.
Article 87 ...	The words "Joint Stock" shall be deleted.
Article 119	The whole article shall be deleted.
Article 121	For the cross-heading to the article there shall be substituted the cross-heading "Branch Register" and for the words "any Dominion or Colony in which it transacts business" there shall be substituted the words "any part of Her Majesty's dominions other than Northern Rhodesia". For the words "in such Dominion or Colony" there shall be substituted where they first occur the word "there" and where they secondly occur the words "in the country or territory". For the word "Colony" where it lastly occurs there shall be substituted the words "country or territory".

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 122	The last sentence of the article shall be deleted.
Article 133	For the words " Section 88 of the Companies (Consolidation) Act 1908 " there shall be substituted the words " Section 73 of the Ordinance ".
Article 137	The words " excepting 1929 " shall be deleted.
Article 138	For the words " the Board of Trade " there shall be substituted the words " the Governor of Northern Rhodesia ".
Article 139	The words from " and the report " to the end of the first paragraph of the article shall be deleted.
Article 150	For the words " Section 192 of the Companies (Consolidation) Act 1908 " there shall be substituted the words " Section 201 of the Ordinance ".
All articles	The articles amended as aforesaid shall be renumbered consecutively and references to particular articles therein contained shall be corrected accordingly.

PART II

AS RESPECTS RHOKANA CORPORATION LIMITED

Provision to be amended	Amendment
Memorandum of Association— Clause 2 ...	For the word " England " there shall be substituted the words " Northern Rhodesia ".
Articles of Association— Article 1 ...	For the words " The Companies Act 1929 " there shall be substituted the words " The Companies Ordinance of Northern Rhodesia ".
Article 2 ...	For the words " The Act " and the definition thereof there shall be substituted the words " The Ordinance " and the definition " The Companies Ordinance of Northern Rhodesia " and for the definition of " The Statutes " there shall be substituted the definition " The Companies Ordinance of Northern Rhodesia and every other enactment having effect for the time being in the said territory concerning joint stock companies and affecting the Company ".
	For the definition of " Extraordinary Resolution " there shall be substituted the definition " A resolution passed by a majority of not less than three-fourths of the members voting in person or by proxy and entitled so to vote at a meeting of which notice specifying the intention to propose the resolution as an extraordinary resolution has been duly given ".
	For the words " Section 117 (2) of the Act " there shall be substituted the words " Section 104 of the Ordinance ".
	The words " Official Seal " and the definition thereof shall be deleted.

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 4 ...	The words “ transactions mentioned in the proviso to Section 45 (1) of the Act or ” shall be deleted and for the words “ Section 46 of the Act ” there shall be substituted the words “ Section 46A of the Ordinance ”.
Article 5 ...	The words “ except in accordance with the provisions of Section 47 of the Act ” shall be deleted.
Article 6A ...	For the words “ Section 46 of the Act ” there shall be substituted in both places where they occur the words “ Section 46A of the Ordinance ”.
Article 8 ...	For the words following “ the minimum amount ” there shall be substituted the words “ prescribed by Section 70 of the Ordinance ”.
Article 9 ...	For the words “ Section 42 of the Act ” there shall be substituted the words “ Section 73 of the Ordinance ”.
Article 10 ...	For the words “ by Section 43 of the Act ” there shall be substituted the words “ relating to payment of commissions ”.
Article 11 ...	For this article the following article shall be substituted “ The Company shall make the annual return required by Section 45 of the Ordinance in the manner therein provided ”.
Article 13 ...	For the words “ or under an Official Seal ” there shall be substituted the words “ or executed by the attorney of the Company duly authorised in that behalf pursuant to Section 108 of the Ordinance ”.
Article 33A...	For the words “ at the Office ” there shall be substituted the words “ in relation thereto ”.
Article 44 ...	For the words “ the Act ” there shall be substituted the words “ Section 24 of the Ordinance ”.
Article 48 ...	For the words “ Section 50 (1) (D) of the Act ” there shall be substituted the words “ Section 13 (1) (a) of the Ordinance ”.
Article 55 ...	For the words “ Section 88 of the Act ” there shall be substituted the words “ Section 89 of the Ordinance ” and for the words “ Section 79 of the Act ” there shall be substituted the words “ Section 82 of the Ordinance ”.
	The words “ and of all floating charges on the undertaking or any property of the Company ” shall be deleted.
Article 58 ...	For the words “ Section 117 of the Act ” in paragraph (E) of the article there shall be substituted the words “ Section 104 of the Ordinance ”.
Article 62 ...	For the words “ Section 116 of the Act ” there shall be substituted the words “ Section 109 of the Ordinance ”.
Article 80 ...	The words “ or as proxy for another Member ” shall be deleted.
Article 83 ...	The words “ As from the expiration of two months from the date of the adoption of these articles ” shall be deleted.

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 86 ...	For the words " Section 144 (1) of the Act " there shall be substituted the words " Section 62 (1) of the Ordinance " and the words " within the periods respectively mentioned in subsection (2) of the said section " shall be deleted.
Article 90 ...	Paragraph (F) of the article and the words " and (F) " in the proviso to the article shall be deleted.
Article 117	The whole article shall be deleted.
Article 119	For the cross-heading to the article there shall be substituted the cross-heading " Branch Register ". For the words " Great Britain the Channel Islands or the Isle of Man " there shall be substituted the words " Northern Rhodesia " and the words " to the provisions of Sections 103 and 104 of the Act and " shall be deleted.
Article 120	The last sentence of the article shall be deleted.
Article 121	There shall be inserted after the words " to be paid " the words " (subject to the rights of any persons entitled to shares carrying special rights as to dividends) ".
Article 130	For the words " Section 42 of the Act " there shall be substituted the words " Section 73 of the Ordinance ".
Article 136	For the words " the Board of Trade " in both places where they occur there shall be substituted the words " the Governor of Northern Rhodesia " and for the words " that Board " there shall be substituted the word " him ".
Article 148	For the words " Section 234 of the Act " there shall be substituted the words " Section 201 of the Ordinance ".
All articles	The articles amended as aforesaid shall be renumbered consecutively and references to particular articles therein contained shall be corrected accordingly.

PART III

AS RESPECTS NCHANGA CONSOLIDATED COPPER MINES LIMITED

Provision to be amended	Amendment
Memorandum of Association— Clause 2 ...	For the word " England " there shall be substituted the words " Northern Rhodesia ".
Articles of Association— Article 1 ...	For the words " The Companies Act 1929 " there shall be substituted the words " The Companies Ordinance of Northern Rhodesia ".

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 2 ...	For the words "The Act" and the definition thereof there shall be substituted the words "The Ordinance" and the definition "The Companies Ordinance of Northern Rhodesia" and for the definition of "The Statutes" there shall be substituted the definition "The Companies Ordinance of Northern Rhodesia and every other enactment having effect for the time being in the said territory concerning joint stock companies and affecting the Company". For the definition of "Extraordinary Resolution" there shall be substituted the definition "A resolution passed by a majority of not less than three-fourths of the members voting in person or by proxy and entitled so to vote at a meeting of which notice specifying the intention to propose the resolution as an extraordinary resolution has been duly given". In the definition of "Special Resolution" there shall be substituted for the words "Section 117 (2) of the Act" the words "Section 104 of the Ordinance".
Article 5 ...	The words from "but nothing in this article" to the end of the article shall be deleted.
Article 9 ...	For the words following "the minimum amount" there shall be substituted the words "prescribed by Section 70 of the Ordinance".
Article 10 ...	For the words "Section 42 of the Act" there shall be substituted the words "Section 73 of the Ordinance".
Article 11 ...	For the words "by Section 43 of the Act" there shall be substituted the words "relating to payment of commissions".
Article 12 ...	For this article the following article shall be substituted "The Company shall make the annual return required by Section 45 of the Ordinance in the manner therein provided".
Article 14 ...	For the words "or an Official Seal of the Company" there shall be substituted the words "of the Company or executed by its attorney duly authorised in that behalf pursuant to Section 108 of the Ordinance".
Article 32A.	For the words "at the Office" there shall be substituted the words "in relation thereto".
Article 43 ...	For the words "the Act" there shall be substituted the words "Section 24 of the Ordinance".
Article 47 ...	For the words "Section 50 (1) (D) of the Act" there shall be substituted the words "Section 13 (1) (a) of the Ordinance".
Article 54 ...	For the words "Section 88 of the Act" there shall be substituted the words "Section 89 of the Ordinance" and for the words "Section 79 of the Act" there shall be substituted the words "Section 82 of the Ordinance". The words "and of all floating charges on the undertaking or any property of the Company" shall be deleted.

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 57 ...	For the words " Section 117 of the Act " in paragraph (e) of the article there shall be substituted the words " Section 104 of the Ordinance ".
	For the words " Dominion Register " in the three places where they occur there shall be substituted the words " Branch Register ".
Article 58 ...	For the words " Section 117 of the Act " there shall be substituted the words " Section 104 of the Ordinance ".
Article 61 ...	For the words " Section 116 of the Act " there shall be substituted the words " Section 109 of the Ordinance ".
Article 73 ...	The last sentence of the article shall be deleted.
Article 78 ...	The words " or as proxy for another Member " shall be deleted.
Article 84 ...	For the words " Section 144 (1) of the Act " there shall be substituted the words " Section 62 (1) of the Ordinance " and the words " within the periods respectively mentioned in subsection (2) of the said section " shall be deleted.
Article 88 ...	Paragraph (F) of the article shall be deleted and for the words " Subclauses (D) and (F) above " there shall be substituted the words " Subclause (D) above ".
Article 115	The whole article shall be deleted.
Article 117	For the cross-heading to the article there shall be substituted the cross-heading " Branch Register ".
	For the words " Great Britain the Channel Islands or the Isle of Man " there shall be substituted the words " Northern Rhodesia " and the words " to the provisions of Sections 103 and 104 of the Act and " shall be deleted.
Article 118	The last sentence of the article shall be deleted.
Article 128	For the words " Section 42 of the Act " there shall be substituted the words " Section 73 of the Ordinance ".
Article 132	For the words " Dominion Register " in the three places where they occur there shall be substituted the words " Branch Register ".
Article 134	For the words " the Board of Trade " in both places where they occur there shall be substituted the words " the Governor of Northern Rhodesia " and for the words " that Board " there shall be substituted the word " him ".
Article 144	For the words " Section 234 of the Act " there shall be substituted the words " Section 201 of the Ordinance ".
All articles	The articles amended as aforesaid shall be renumbered consecutively and references to particular articles therein contained shall be corrected accordingly.

PART IV

AS RESPECTS RHODESIA COPPER REFINERIES LIMITED

Provision to be amended	Amendment
Memorandum of Association— Clause 2 ...	For the word “ England ” there shall be substituted the words “ Northern Rhodesia ”.
Articles of Association— Article 1 ...	For the words “ The Companies Act 1929 ” there shall be substituted the words “ The Companies Ordinance of Northern Rhodesia ”.
Article 2 ...	For the words “ The Act ” and the definition thereof there shall be substituted the words “ The Ordinance ” and the definition “ The Companies Ordinance of Northern Rhodesia ” and for the definition of “ The Statutes ” there shall be substituted “ The Companies Ordinance of Northern Rhodesia and every other enactment having effect for the time being in the said territory concerning joint stock companies and affecting the Company ”.
	For the definition of “ Extraordinary Resolution ” there shall be substituted the definition “ A resolution passed by a majority of not less than three-fourths of the members voting in person or by proxy and entitled so to vote at a meeting of which notice specifying the intention to propose the resolution as an extraordinary resolution has been duly given ”.
	In the definition of “ Special Resolution ” there shall be substituted for the words “ Section 117 (2) of the Act ” the words “ Section 104 of the Ordinance ”.
	The words “ Official Seal ” and the definition thereof shall be deleted.
Article 5 ...	The words “ transactions mentioned in the proviso to Section 45 (1) of the Act or ” shall be deleted and for the words “ Section 46 of the Act ” there shall be substituted the words “ Section 46A of the Ordinance ”.
Article 8 ...	For the words “ Section 46 of the Act ” there shall be substituted in both places where they occur the words “ Section 46A of the Ordinance ”.
Article 11 ...	For the words following “ the minimum amount ” there shall be substituted the words “ prescribed by Section 70 of the Ordinance ”.
Article 12 ...	For the words “ Section 42 of the Act ” there shall be substituted the words “ Section 73 of the Ordinance ”.
Article 13 ...	For the words “ by Section 43 of the Act ” there shall be substituted the words “ relating to payment of commissions ”.
Article 14 ...	For this article the following article shall be substituted. “ The Company shall make the annual return required by Section 45 of the Ordinance in the manner therein provided ”.
Article 34A	For the words “ at the Office ” there shall be substituted the words “ in relation thereto ”.

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 38 ...	The words "Dominion Register or" shall be deleted.
Article 45 ...	For the words "the Act" there shall be substituted the words "Section 24 of the Ordinance".
Article 49 ...	For the words "Section 50 (1) (D) of the Act" there shall be substituted the words "Section 13 (1) (a) of the Ordinance".
Article 56 ...	For the words "Section 88 of the Act" there shall be substituted the words "Section 89 of the Ordinance" and for the words "Section 79 of the Act" there shall be substituted the words "Section 82 of the Ordinance".
	The words "and of all floating charges on the undertaking or any property of the Company" shall be deleted.
Article 59 ...	For the words "Section 117 of the Act" in paragraph (E) of the article there shall be substituted the words "Section 104 of the Ordinance".
Article 60 ...	For the word "Act" there shall be substituted the word "Ordinance".
	For the words "Dominion Register" in the three places where they occur there shall be substituted the words "Branch Register".
Article 63 ...	For the words "Section 116 of the Act" there shall be substituted the words "Section 109 of the Ordinance".
Article 80 ...	The words "or as proxy for another Member" shall be deleted.
Article 86 ...	For the words "Section 144 (1) of the Act" there shall be substituted the words "Section 62 (1) of the Ordinance" and the words "within the periods respectively mentioned in subsection (2) of the said section" shall be deleted.
Article 90 ...	Paragraph (F) of the article shall be deleted and for the words "Subclauses (D) and (F) above" there shall be substituted the words "Subclause (D) above".
Article 116	The whole article shall be deleted.
Article 118	For the cross-heading to the article there shall be substituted the cross-heading "Branch Register".
	For the words "Great Britain the Channel Islands or the Isle of Man" there shall be substituted the words "Northern Rhodesia" and the words "to the provisions of Sections 103 and 104 of the Act and" shall be deleted.
Article 119	The last sentence of the article shall be deleted.
Article 120	There shall be inserted after the words "to be paid" the words "(subject to the rights of any persons entitled to shares carrying special rights as to dividends)".
Article 129	For the words "Section 42 of the Act" there shall be substituted the words "Section 73 of the Ordinance".
Article 133	For the words "Dominion Register" in the three places where they occur there shall be substituted the words "Branch Register".

Provision to be amended	Amendment
Articles of Association— <i>cont.</i> Article 135	For the words "the Board of Trade" in both places where they occur there shall be substituted the words "the Governor of Northern Rhodesia" and for the words "that Board" there shall be substituted the word "him".
Article 139	For the words "Dominion Register" in both places where they occur there shall be substituted the words "Branch Register".
Article 145	For the words "Section 234 of the Act" there shall be substituted the words "Section 201 of the Ordinance".
Article 147	The words "Subject to the provisions of Section 152 of the Act" shall be deleted.
All articles	The articles amended as aforesaid shall be renumbered consecutively and references to particular articles therein contained shall be corrected accordingly.

PART V

AS RESPECTS THE RHODESIA BROKEN HILL DEVELOPMENT COMPANY LIMITED

Provision to be amended	Amendment
Memorandum of Association— Clause 2 ...	For the word "England" there shall be substituted the words "Northern Rhodesia".
Articles of Association— Article 1 ...	For the words "The Companies (Consolidation) Act 1908" there shall be substituted the words "The Companies Ordinance of Northern Rhodesia".
Article 2 ...	There shall be inserted immediately after the words "The Company" and the definition thereof the words "The Ordinance" and the definition "The Companies Ordinance of Northern Rhodesia". For the definition of "The Statutes" there shall be substituted the definition "The Companies Ordinance of Northern Rhodesia and every other enactment having effect for the time being in the said territory concerning joint stock companies and affecting the Company". For the definition of "Extraordinary Resolution" there shall be substituted the definition "A resolution passed by a majority of not less than three-fourths of the members voting in person or by proxy and entitled so to vote at a meeting of which notice specifying the intention to propose the resolution as an extraordinary resolution has been duly given".

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 2— <i>cont.</i>	For the definition of "Special Resolution" there shall be substituted the definition "The meaning assigned by Section 104 of the Ordinance".
Article 8 ...	For the words "Section 88 of the Companies (Consolidation) Act 1908" there shall be substituted the words "Section 73 of the Ordinance".
Article 9 ...	The whole article shall be deleted.
Article 11 ...	For this article the following article shall be substituted "The Company shall make the annual return required by Section 45 of the Ordinance in the manner therein provided".
Article 15 ...	For the words "or an Official Seal of the Company" there shall be substituted the words "or executed by the attorney of the Company duly authorised in that behalf pursuant to Section 108 of the Ordinance".
Article 34A	For the words "at the Office" there shall be substituted the words "in relation thereto".
Article 52 ...	There shall be inserted after the word "may" the words "(subject to the provisions of Section 55 of the Ordinance)".
Article 58 ...	For the words "Section 100 of the Companies (Consolidation) Act 1908" there shall be substituted the words "Section 89 of the Ordinance" and for the words "Section 101 of the Companies (Consolidation) Act 1908" there shall be substituted the words "Section 82 of the Ordinance".
Article 59 ...	The whole article shall be deleted.
Article 60 ...	The word "other" shall be deleted.
Article 79 ...	The last sentence of the article shall be deleted.
Article 84 ...	The words "or as proxy for another Member" shall be deleted.
Article 88 ...	The words "Joint Stock" shall be deleted.
Article 118	The whole article shall be deleted.
Article 120	For the cross-heading to the article there shall be substituted the cross-heading "Branch Register" and for the words "any Colony or territory in which it transacts business" there shall be substituted the words "any part of Her Majesty's dominions other than Northern Rhodesia".
	For the words "in such Colony or territory" there shall be substituted where they first occur the word "there" and where they secondly and thirdly occur the words "in the country or territory".
	For the word "exercise" where it lastly occurs there shall be substituted the word "exercised".
Article 121	The words "to the provisions of sections 34 35 and 36 of the Companies (Consolidation) Act 1908 and" shall be deleted.
Article 122	The last sentence of the article shall be deleted.
Article 134	For the words "Section 88 of the Companies (Consolidation) Act 1908" there shall be substituted the words "Section 73 of the Ordinance".

Provision to be amended	Amendment
Articles of Association— <i>cont.</i>	
Article 138	The phrase “ except 1910 ” shall be deleted.
Article 140	The phrase “ except 1910 ” shall be deleted.
Article 141	For the words “ the Board of Trade ” there shall be substituted the words “ the Governor of Northern Rhodesia ”.
Article 154	For the words “ Section 192 of the Companies (Consolidation) Act 1908 ” there shall be substituted the words “ Section 201 of the Ordinance ”.
All articles	The articles amended as aforesaid shall be renumbered consecutively and references to particular articles therein contained shall be corrected accordingly.

Table of Statutes referred to in this Act

Short title	Session and chapter
Companies (Consolidation) Act 1908	8 Edw. 7. c. 69.
Companies Act 1929	19 & 20 Geo. 5. c. 23.
Exchange Control Act 1947	10 & 11 Geo. 6. c. 14.
Companies Act 1948	11 & 12 Geo. 6. c. 38.
Arbitration Act 1950	14 Geo. 6. c. 27.

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